

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, October 10, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29451 against Police Officer Rolando Deleon, Tax Registry No. 959587. The case was conferenced on September 26, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the dismissal of the charges in return for the recommended negotiated penalty of Command Discipline Schedule "B" and forfeiture of seven (7) vacation days.

Andre Applewhite

Andre Applewhite

Chief Prosecutor, APU

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2023-29451BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DELEON	FIRST ROLANDO	M.I.	COMMAND 052 PRECINCT
SHIELD NO. 19336	TAX REGISTRY NO. 959587	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Rolando Deleon, on or about October 13, 2022, at approximately 1916, while assigned to 052 PCT and on duty, in the vicinity of West Kingsbridge Road and Bailey Avenue, Bronx County, abused his authority as a member of the New York City Police Department, in that he drew his gun without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 7.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Rolando Deleon, on or about October 13, 2022, at approximately 1916, while assigned to 052 PCT and on duty, in the vicinity of West Kingsbridge Road and Bailey Avenue, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force, stating in sum and substance, "Get out the car and make me shut the fuck up" without police necessity.	DISMISSED	
3 . Police Officer Rolando Deleon, on or about October 13, 2022, at approximately 1916, while assigned to 052 PCT and on duty, in the vicinity of West Kingsbridge Road and Bailey	DISMISSED	


FIRST DEPUTY COMMISSIONER10/30/24
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)
POLICE COMMISSIONER11/8/24
DATE



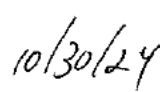
DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29451
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DELEON	FIRST ROLANDO	M.I.	COMMAND 052 PRECINCT
SHIELD NO. 19336	TAX REGISTRY NO. 959587	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
Avenue, Bronx County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he spoke discourteously to § 87(2)(b) stating in sum and substance, "Get out the car and make me shut the fuck up" without police necessity.		

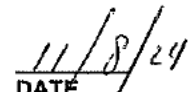

FIRST DEPUTY COMMISSIONER


DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER


DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner October 30, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29451 against Sergeant Rolando Deleon, Tax No. 959587, with the recommendation that the Charges and Specifications against Sergeant Deleon be dismissed and that Sergeant Deleon receive a Schedule "B" Command Discipline and forfeit seven (7) vacation days; I concur. **RECOMMEND APPROVAL.**

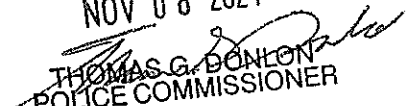
TIK/jpc



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

NOV 08 2024



THOMAS G. DONLON
POLICE COMMISSIONER